

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

March 14, 2017

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:04 p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne (arriving at 6:13 p.m.), Scott Roybal, Dicky Shanor and Jeff White. Absent: Bryan Cook. Also present were: Carol Intlekofer, City Clerk; Sylvia Hackl, City Attorney; Alessandra McCoy, Assistant City Attorney, Lois Huff, City Treasurer, and Tom Schingle, Interim Chief, Fire and Rescue Department. The pledge of allegiance was recited.

Mayor Orr advised the meeting would be audio recorded, and stated that Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows the governing body to meet in executive session to consider or tender offers regarding wages, salaries, or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further advised if the governing body met in executive session, they would be meeting in the City Council Administrative office, and that Fire Union representatives were welcome to use Room 104 for the purpose of meeting to caucus. She stated that spokespersons for the City are herself and Dicky Shanor, and Jonathan Bertsch and Andrew Dykeshorn are the spokespersons for the Union. She noted that any collective labor agreement that may be reached must be approved by the governing body with the agreement placed on the City Council agenda for approval.

Mayor Orr, with input provided by Mr. Bertsch and Mr. Shanor, reviewed the following sections, or portions thereof, for points of clarification: Section 17, Severance Pay; Section 22, Classification of Employment and Basic Wages; Section 23, Overtime, and Section 27, Wellness/Fitness Program. Mr. Shanor moved to meet in executive session, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body present. [City Clerk note: Audio recording of the meeting was stopped; executive session convened at 6:20 p.m. in the City Council Administrative office]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:24 p.m. Mayor Orr presented the City’s counteroffer with clarifications on the following sections, or portions thereof: Section 22, Classification of Employment and Basic Wages (City offers a one year contract with a 2% base pay increase with no specialty pay increase); Section 23, Overtime (City has no objection relative to wording verified by Mr. Shanor earlier in the meeting), and Section 27, Wellness/Fitness Program (clarification that the City will provide an annual physical). Mayor Orr recessed the meeting at 7:25 p.m. to allow Union representatives to caucus [City Clerk note: Audio recording of the meeting was stopped]

Mayor Orr reconvened the special meeting at 7:40 p.m. Mr. Bertsch stated the Union accepts the City's last counteroffer. Appreciation for each side's work on the negotiations was expressed by Mayor Orr and Mr. Bertsch. Mayor Orr briefly commented on the unknown future status of funding from the state, and potential changes in the City's budget process (i.e. biennial vs. annual budget) that may occur in the future.

Mayor Orr stated the purpose of the special meeting had been met, and there being no other business previously noted for the special meeting, adjourned the meeting at 7:47 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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